

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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THE CITY OF NEW YORK,

Plaintiff,

-against-

ATTORNEY AFFIRMATION

Index No.: 450551/2025

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK; WEST 42nd STREET DEVELOPERS, LLC; BABY'S WEST 42 LLC; "JOHN DOE" and "JANE DOE," fictitiously named parties, true names unknown, the intended being the owners, lessees, operators or occupants of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York; and any person claiming any right, title or interest in the real property which is the subject of this action,

Defendants.

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EVAN GLUCK, an attorney admitted to practice before the courts of this State, affirms this 28 day of January, 2025, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the following is true, and understands that this document may be filed in an action or proceeding in a court of law.

INTRODUCTORY STATEMENT

1. I am an attorney in the office of the Legal Bureau of the Police Department and of counsel to Michael Gerber, acting by designation of Muriel Goode-Trufant, Corporation Counsel of the City of New York, attorney for plaintiff herein. I make this affirmation based upon my review of records maintained by, and information obtained from, various departments of the city government and from statements made to me by certain officers or agents of the City of New York.

2. This affirmation is submitted in support of plaintiff's application, brought by Order to Show Cause, for a preliminary injunction in the form of a temporary restraining order and temporary closing order pursuant to Section 7-707 of the New York City Administrative Code ("Administrative Code") enjoining defendants from maintaining a public nuisance within the commercial premises operating within the basement, ground floor and second floor of the building located at 512 West 42nd Street, New York, New York (hereinafter "subject premises"), by prohibiting defendants from using or operating said premises for the sale and on-premises consumption of alcoholic beverages without a license from the New York State Liquor Authority as is required by law, and any other unlawful activity described in Section 123 of the New York State Alcoholic Beverage Control Law.

3. This affirmation is also submitted in support of plaintiff's Order to Show Cause for an immediate *ex parte* temporary restraining order pursuant to Section 7-710 of the Administrative Code enjoining defendants from maintaining a public nuisance inside the subject premises by prohibiting defendants from using or operating said premises for the unlicensed sale and on-premises consumption of alcoholic beverages, in violation of the licensing requirements of the Alcoholic Beverage Control Law.

4. In the event that the Court adjourns the first return date for the hearing of plaintiff's motion for a preliminary injunction, plaintiff respectfully submits that the Court should issue a temporary closing order prohibiting the use and/or occupancy of the subject premises, for any purpose whatsoever, until such time that the Court conducts a hearing on the request for a preliminary injunction.

BACKGROUND FACTS

5. Plaintiff THE CITY OF NEW YORK is a municipal corporation incorporated under the laws of the State of New York.

6. Defendant THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK, is the real property where the subject premises is located. The commercial premises operating located within the basement, ground floor and second floor of the building located at 512 West 42nd Street, New York, New York (the “subject premises”), is the subject premises where the unlawful activities described herein have taken place.

7. Defendant WEST 42nd STREET DEVELOPERS, LLC is the last recorded owner of the real property which is the site of the subject premises according to a deed recorded in New York County, Office of the City Register. *See* Copy of Deed, annexed hereto as Exhibit “1.”

8. Defendant BABY’s WEST 42 LLC is an active domestic limited liability company registered with the New York State Department of State (the “DOS”) to receive service of legal process at the subject premises according to the online entity database maintained by the DOS. *See* Information Maintained by the New York State Department of State, annexed hereto as Exhibit “2.”

9. Defendants “JOHN DOE” and “JANE DOE” are fictitiously named parties, true names unknown, the parties intended being any person or entity who is an owner, lessor, lessee, operator, employee, agent and/or occupant of the subject premises, and any other person or entity claiming any right, title or interest in the real property which is the site of the subject premises.

10. The online database of licensed premises maintained by the New York State Liquor Authority was reviewed on the date of this affirmation. This review reflects that the subject premises is not listed as a premises that is currently granted a New York State Liquor Authority (“SLA”) license authorizing the sale and on-premises consumption of alcoholic beverages. The subject premises had previously been granted a license by the SLA, but it expired on June 30, 2024.

11. As detailed in the annexed affirmations of members of the NYPD, the subject premises is being used for the sale and on-premises consumption of alcoholic beverages without a license issued by the New York State Liquor Authority, which constitutes a public nuisance under the Section 7-703(h) of the New York City Nuisance Abatement Law. *See*, Administrative Code § 7-701, *et seq.*

**UNLICENSED ACTIVITY IN VIOLATION OF THE ALCOHOLIC
BEVERAGE CONTROL LAW AT THE SUBJECT PREMISES**

12. On November 1, 2024, and December 9, 2024, alcoholic beverages were warehoused, sold and/or consumed at the subject premises without a license or permit from the New York State Liquor Authority, in violation of Sections 100, 64-b(1) and/or 96(a)(1) of the Alcoholic Beverage Control Law. Additionally, on one of the incident dates, a patron at the subject premises suffered a gunshot wound to the head, while on the other date, police officers cleared the subject premises after a patron was allegedly seen brandishing a firearm.

13. Members of the NYPD have come to know the subject premises as a business operating as “Baby’s NYC.” This is based on information provided by members of the public, as well as postings to social media websites, such as X and Instagram. The subject premises is operated as nightclub/lounge that sells alcoholic beverages. This includes, for example, a posting to Instagram advertising an event that was scheduled to take place at the Subject Premises on

October 11, 2024. In this posting, it was stated that alcoholic beverages would be offered for sale, including cognac and tequila. *See* affirmation of Lieutenant John Corde, annexed hereto as Exhibit “3” at ¶ 4; affirmation of Sergeant Jason Castillo, annexed hereto as Exhibit “4” at ¶ 4; and screen shot from Instagram.com, annexed hereto as Exhibit “5.”

November 1, 2024

14. On the evening of October 31, 2024, going into the morning of November 1, 2024, the NYPD became aware that a Halloween party would take place within the subject premises. *See* Exhibit “3” at ¶ 6.

15. In order to be able to quickly respond to any emergency incidents, Lieutenant John Corde and other officers from the 10th Precinct were assigned to remain in the vicinity of the subject premises during this event. *See* Exhibit “3” at ¶ 7.

16. Upon arriving at the subject premises, Lt. Corde and the other officers introduced themselves to individuals who appeared to be employed as security guards and a manager for the subject premises. The officers made the security guards and manager aware that they were outside the subject premises and were available to respond to any incidents that required police attention. *See* Exhibit “3” at ¶ 8.

17. At approximately 2:20 a.m. on November 1, 2024, the head security guard approached Lt. Corda and stated that one of the patrons had brandished a firearm inside the subject premises. Lt. Corda and the other officers expressed their concern that the firearms posed an imminent threat to everyone inside the subject premises. The head security guard shared this concern, and thus he granted the NYPD permission to enter the subject premises and have all the patrons exit. The manager also agreed to close the subject premises for the evening once all the patrons had exited. Shortly thereafter, Lt. Corda and the other officers then entered the subject

premises. *See* Exhibit “3” at ¶ 9.

18. Upon entering the subject premises Lt. Corda observed approximately over four hundred (400) individuals inside. He and the other officers then started the process of clearing out the subject premises. All of the patrons eventually left without incident. *See* Exhibit “3” at ¶ 10.

19. While walking throughout the subject premises Lt. Corda observed that it was set up as a nightclub, in that it had DJ booths and areas for dancing. *See* Exhibit “3” at ¶ 11.

20. Lt. Corda also observed several bar areas within the subject premises, all of which were stocked with alcoholic beverages, including spirits and beer. Lt. Corda knew these bottles to contain alcoholic beverages based on his training and experience, as well as the distinctive packaging. *See* Exhibit “3” at ¶ 11.

21. Furthermore, Lt. Corda observed cups of alcoholic beverages throughout the subject premises, which he determined to contain alcoholic beverages based on their odor and appearance. *See* Exhibit “3” at ¶ 12.

22. At no point during his time inside the subject premises did Lt. Corda observe a valid license issued by the New York State Liquor Authority. *See* Exhibit “3” at ¶ 13.

23. The online databased maintained by the SLA reflects that the subject premises had previously been granted a license by the SLA, but such license expired on June 30, 2024.

December 9, 2024

24. On the evening of December 8, 2024, going into the morning of December 9, 2024, the NYPD became aware that an event would take place within the subject premises. This included a potential musical performance. In order to be able to quickly respond to any emergency incidents, Sgt. Jason Castillo and other officers from the 10th Precinct were assigned to remain in

the vicinity of the subject premises during this event. *See* Exhibit “4” at ¶ 6.

25. Upon arriving at the subject premises, Sgt. Castillo and the other officers introduced ourselves to individuals who appeared to be employed as security guards for the subject premises. The officers made the security guards aware that they were outside the subject premises and were available to respond to any incidents that required police attention. *See* Exhibit “4” at ¶ 7.

26. At approximately 1:30 a.m. on December 9, 2024, one of the security guards approached Sgt. Castillo and the other officers and informed them that three (3) gun shots had just occurred within the subject premises. Sgt. Castillo and the other officers then entered the subject premises in order to assist the victim, as well as prevent any potential additional violence. *See* Exhibit “4” at ¶ 8.

27. As Sgt. Castillo entered the subject premises he observed numerous patrons running out of the building. By the time he entered the subject premises, approximately seventy (70) patrons remained inside. *See* Exhibit “4” at ¶ 9.

28. A short time later, Sgt. Castillo and the other officers found a male laying in the rear of the ground floor. Thereafter emergency medical service workers arrived to treat the victim and remove him to a hospital. The victim was later determined by the hospital to have been shot in the head multiple times. *See* Exhibit “4” at ¶ 10.

29. While walking throughout the subject premises Sgt. Castillo observed that it was set up as a nightclub, in that it had DJ booths and areas for dancing. *See* Exhibit “4” at ¶ 11.

30. Sgt. Castillo also observed several bar areas within the subject premises, all of which were stocked with alcoholic beverages, including spirits and beer. Sgt. Castillo knew these bottles to contain alcoholic beverages based on his training and experience, as well as the distinctive packaging. One of the bars had a sign attached to it, which advertised “Mr. Sancho

Pancho” brand tequila. At least one of the bars was equipped with multiple cash registers/ordering screens. *See* Exhibit “4” at ¶ 12.

31. Furthermore, Sgt. Castillo observed cups of alcoholic beverages throughout the subject premises, which he determined to contain alcoholic beverages based on their odor and appearance. *See* Exhibit “4” at ¶ 13.

32. At no point during his time inside the subject premises did Sgt. Castillo observe a valid license issued by the New York State Liquor Authority. *See* Exhibit “4” at ¶ 14.

APPLICABLE LAW

32. In 1977, the New York City Council enacted the Nuisance Abatement Law (Section 7-701 *et seq.* of the Administrative Code) with the express purpose of addressing the serious problem created by:

public nuisances [that] exist in the city in flagrant violation of the . . . licensing laws, laws relating to the sale and consumption of alcoholic beverages . . . all of which interfere with the quality of life, property values and the public health, safety and welfare. . . .

Administrative Code § 7-701 (as amended by Local Law 41 of 2017).

33. Pursuant to Sections 7-703(f), (h) and (l) of the Administrative Code, a public nuisance includes, in part:

(f) Any building, erection or place, including one- or two-family dwellings, used for the purpose of a business, activity or enterprise which is not licensed as required by law;

* * *

(h) Any building, erection or place, including one- or two- family dwellings, where, within the period of one year prior to the commencement of an action under this chapter, there have occurred at least four instances of the unlawful activities described in section 123 of the alcoholic beverage control law, where a reasonable person would or should have been aware that such unlawful activity was occurring...Notwithstanding the foregoing, *only one instance of such unlawful activity shall be required if the building, erection or place*

was not licensed as required by the alcohol beverage control law.
(Emphasis added)

* * *

(l) Any building, erection or place, including one- or two-family dwellings, wherein there is occurring a criminal nuisance as defined in section 240.45 of the penal law. . . .

34. Section 123(1)(a) of the Alcoholic Beverage Control Law states, in relevant part, as follows:

Injunction for unlawful manufacturing, sale or consumption of liquor, wine or beer.

1. (a) If any person shall engage or participate or be about to engage or participate in the manufacturing or sale of liquor, wine or beer in this state *without obtaining the appropriate license* therefor, or shall traffic in liquor, wine or beer contrary to any provision of this chapter, or otherwise unlawfully, or shall traffic in illegal liquor, wine or beer, or, operating a place for profit or pecuniary gain, with a capacity for the assemblage of twenty or more persons, shall permit a person or persons to come to such place of assembly for the purpose of consuming alcoholic beverages without having the appropriate license therefor pursuant to section sixty-four-b of this chapter, the liquor authority or any taxpayer residing in the city, village or town in which such activity is or is about to be engaged or participated in or such traffic is being conducted, or the city, town or village, may present a verified petition or complaint to a justice of the supreme court...for an order enjoining such person engaging or participating in such activity or from carrying on such business (Emphasis added)

35. Section 64-b (1) of the Alcoholic Beverage Control Law states, in relevant part, as follows:

License to sell liquor on premises commonly known as a bottle club

1. It shall be unlawful for any person, partnership or corporation operating a place for profit or pecuniary gain, with a capacity for the assemblage of twenty or more persons to permit a person or persons to come to the place of assembly for the purpose of consuming alcoholic beverages on said premises, which alcoholic beverages are either provided by the operator of the place of assembly, his agents, servants or employees, or are brought onto said premises by the person or persons assembling at such place, unless an appropriate license has

first been obtained from the state liquor authority by the operator of said place of assembly.

36. Section 96(1)(a) of the Alcoholic Beverage Control Law states, in relevant part, as follows:

No alcoholic beverage shall be stored or kept in or upon any premises which shall not be duly licensed as provided for in this chapter

37. Section 100(1) of the Alcoholic Beverage Control Law states that:

No person shall manufacture for sale or sell at wholesale or retail any alcoholic beverage within the state without obtaining the appropriate license therefor required by this chapter.

38. Section 240.45(2) of the Penal Law states that, “[a] person is guilty of criminal nuisance in the second degree when . . . [h]e knowingly conducts or maintains any premises, place or resort where persons gather for purposes of engaging in unlawful conduct.”

39. Pursuant to Section 7-706 of the Administrative Code, the Corporation Counsel is explicitly authorized to bring and maintain an action in the Supreme Court to permanently enjoin the above public nuisances, as well as to permanently enjoin the person or persons conducting, maintaining or permitting such public nuisances from further conducting, maintaining or permitting such public nuisances.

A PUBLIC NUISANCE EXISTS AT THE SUBJECT PREMISES

40. A public nuisance, as defined by Section 7-703 of the Administrative Code, exists at the subject premises. As stated above, Administrative Code Section 7-703(f) declares a premises to be a public nuisance when it is used for a business without a license as required by law, and Section 7-703(h) declares a public nuisance to exist wherein a premises is not licensed as required by the Alcoholic Beverage Control (“ABC”) Law and there occurs a single instance of the unlawful activity described in Section 123 of the ABC Law. Additionally, Administrative Code Section

7-703(l) declares a premises to be a public nuisance where there is occurring a criminal nuisance as defined under Penal Law § 240.45, which includes a place conducted or maintained for persons to gather for purposes of engaging in unlawful conduct.

41. The annexed affirmations of Sgt. Castillo and Lt. Corde provided in support of this application clearly demonstrate that the subject premises is a public nuisance under Sections 7-703(f), (h) and (l) of the Administrative Code. The annexed affirmations of Sgt. Castillo and Lt. Corde establish violations of the ABC Law predicated on unlicensed activity at the subject premises on November 1, 2024, and December 9, 2024. As a result, the subject premises is a public nuisance under Sections 7-703 (f), (h) and (l) of the Administrative Code. *See* Exhibits “3” and “4.”

42. Those individuals involved in these illegal activities may still have access to the subject premises. As a result, the opportunity for illegal activity and the consequential negative effect on the surrounding community still exists. A preliminary injunction enjoining the use of the subject premises for the unlicensed sale, on-premises consumption and storage of alcohol is required to immediately abate this serious public nuisance and protect the surrounding community.

PLAINTIFF IS ENTITLED TO A PRELIMINARY INJUNCTION

43. The annexed affirmations of Sgt. Castillo and Lt. Corde establish that violations of the ABC Law predicated on unlicensed activity occurred at the subject premises on November 1, 2024, and December 9, 2024, and that defendants have created a criminal nuisance pursuant to Section 240.45(2) of the Penal Law. Plaintiff is therefore entitled to a judgment permanently enjoining defendants from continuing their illegal use and occupancy of the subject premises.

44. Pending an action for a permanent injunction, the Nuisance Abatement Law authorizes the court to issue a preliminary injunction. Section 7-707 (a) of the Administrative Code states, in part:

Pending an action for a permanent injunction as provided for in section 7-706 of this subchapter, the court may grant a preliminary injunction enjoining a public nuisance within the scope of this subchapter and the person or persons conducting, maintaining or permitting the public nuisance from further conducting, maintaining or permitting the public nuisance, where the public health, safety or welfare immediately requires the granting of such injunction. . . .

45. A showing of irreparable injury is not a prerequisite to obtaining a preliminary injunction in this matter because the Nuisance Abatement Law was enacted to protect the public health, safety and welfare, and it authorizes the City to obtain injunctive relief in response to public nuisances, which include the use of a premises for the sale and on-premises consumption of alcohol without a license from the New York State Liquor Authority. *See e.g. State v. Brookhaven Aggregates, Ltd.*, 121 A.D.2d 440, 442 (2d Dept. 1986) (holding that where a statutory provision authorizes injunctive relief, the government is not required to show special damage or injury to the public as a condition to such relief, as commission of the prohibited acts is sufficient to show irreparable injury in the absence of a grant of relief); *see also People ex rel. Bennett v. Laman*, 277 N.Y. 368, 383-84 (1938); *City of Rochester v. Gutberlett*, 211 N.Y. 309 (1914); *Town of Islip v. Clark*, 90 A.D.2d 500 (2d Dept. 1982); *City of New York v. Bilynn Realty Corp.*, 118 A.D.2d 511 (1st Dept. 1986); *City of Utica v. Ortner*, 256 A.D. 1039 (4th Dept. 1939); *City of New York v. Castro*, 143 Misc.2d 766 (1989), *aff'd*, 160 A.D.2d 651 (1st Dept. 1990); *City of New York v. Narod Realty Corp.*, 122 Misc.2d 885 (Sup. Ct. Bronx Co. 1983).

46. Rather, since injunctive relief is specifically authorized by the Nuisance Abatement Law against a premises being used in violation of the licensing requirements of the Alcoholic Beverage Control Law, a *prima facie* showing that defendants are indeed using the premises for the unlicensed sale and on-premises consumption of alcohol is sufficient to entitle plaintiff to a preliminary injunction *pendente lite*.

47. Plaintiff has surpassed the low threshold needed to make a *prima facie* showing. The annexed affirmations of police officers establish by clear and convincing evidence that defendants have used the subject premises for unlicensed activity under the ABC Law, a public nuisance as defined by Sections 7-703(f), (h) and (l) of the Administrative Code, and thus, plaintiff is entitled to a preliminary injunction pursuant to Sections 7-707 of the Administrative Code.

48. However, even if the Nuisance Abatement Law provisions for preliminary injunctions did not exist, this Court could nonetheless grant a preliminary injunction pursuant to CPLR § 6301. In determining whether a preliminary injunction is warranted under CPLR § 6301, the courts have traditionally employed a three-pronged test, requiring that the moving party demonstrate: (i) a likelihood of ultimate success on the merits; (ii) irreparable injury absent the granting of a preliminary injunction; and (iii) that the balancing of equities favors its position. *See, Gambar Ent., Inc. v. Kelly Serv.*, 69 A.D.2d 297, 306 (4th Dept. 1979); *Paine & Chriscott v. Blair House Assoc.*, 70 A.D.2d 571, 572 (1st Dept. 1979). Plaintiff respectfully submits that, since the evidence satisfies this traditional three-pronged test, a preliminary injunction is wholly appropriate.

49. First, plaintiff's likelihood of success on the merits is strongly supported by the evidence submitted in support of this motion. This Court is respectfully referred to the annexed affirmations of Sgt. Castillo and Lt. Corde, which establish that on November 1, 2024, and

December 9, 2024., alcoholic beverages were sold and/or consumed at the subject premises without the requisite license from the New York State Liquor Authority. *See* Exhibits “3” and “4.”

50. Second, defendants’ illegal use of the subject premises constitutes irreparable harm to the City of New York, its residents and visitors. Indeed, in the legislative declaration incorporated into the Nuisance Abatement Law, the City Council recognized that the continued occurrence of activities and violations deemed to constitute a public nuisance is harmful to the public. *See*, Administrative Code § 7-701.

51. Third, the equities are balanced in favor of plaintiff. The subject premises has been operated, occupied and used illegally and thus, no legitimate interest of defendants will be harmed by an injunction. In contrast, the City of New York, and the public at large which it is required to protect, will benefit greatly if the threat of continued illegal sale of alcohol is eliminated from the subject premises. The particular danger presented by this location has manifested itself in the violent incident that occurred at the subject premises. *See* Exhibit “4.”

52. Accordingly, plaintiff has established a *prima facie* case that defendants are maintaining a public nuisance under the Nuisance Abatement Law, as well as satisfied the traditional three-pronged test under the CPLR used to determine whether a preliminary injunction is appropriate. Therefore, plaintiff is entitled to a preliminary injunction pursuant to Section 7-707 of the Administrative Code as well as CPLR § 6301.

**THE COURT SHOULD ISSUE A TEMPORARY CLOSING
AND TEMPORARY RESTRAINING ORDER PENDING THE
HEARING FOR A PRELIMINARY INJUNCTION**

53. In addition, temporary relief pending the hearing on the motion for the preliminary injunction is authorized pursuant to Section 7-707(a) of the Administrative Code, which states, in relevant part, as follows:

A temporary closing order may be granted pending a hearing for a preliminary injunction where it appears by clear and convincing evidence that a public nuisance within the scope of this subchapter is being conducted, maintained or permitted and that the public health, safety or welfare immediately requires the granting of a temporary closing order. A temporary restraining order may be granted pending a hearing for preliminary injunction where it appears by clear and convincing evidence that a public nuisance within the scope of this subchapter is being conducted, maintained or permitted.

54. It is respectfully submitted that the criteria for a temporary closing order and temporary restraining order have been met. Not only has plaintiff shown by clear and convincing evidence that there exists at the subject premises a public nuisance within the scope of the Nuisance Abatement Law, but it is also clear that the public health, safety and welfare require immediate abatement of the public nuisance by an order closing the premises against all use pending the determination of this action.

55. The annexed affirmations of Sgt. Castillo and Lt. Corde establish that the subject premises has been used for the unlicensed sale, consumption and warehousing of alcoholic beverages, unlawful activities described in Section 123 of the Alcoholic Beverage Control Law.

56. Plaintiff asserts that defendants BABY'S WEST 42 LLC, "JOHN DOE" and "JANE DOE," the tenant(s)/operator(s) of the subject premises, have a duty to be aware of the unlicensed sale and/or on-premises consumption of alcoholic beverages at the subject premises. A corporation is liable for the conduct of its agents through whom it conducts its business so long as they act within the scope of their authority, real or apparent. *See, People v. Rochester R. & L.*, 195 N.Y. 102, 105 (1909). An employer has a personal duty to inquire into the conditions prevailing in his business, and he does not rid himself of that duty because the extent of the business may preclude his personal supervision and compel reliance on subordinates. *See, People ex rel. Price v. Sheffield Farms, etc., Co.*, 225 N.Y. 25, 30 (1918).

57. Defendants BABY'S WEST 42 LLC, "JOHN DOE" and "JANE DOE," the tenant(s)/operators(s) of the subject premises, should have been aware of the unlicensed sale and on-premises consumption of alcoholic beverages at the subject premises as this illegal activity was open and notorious, and permitted, maintained, and/or conducted without obtaining a license from the New York State Liquor Authority.

58. Upon information and belief, defendant WEST 42nd STREET DEVELOPERS, LLC, the deed owner of the subject premises, was also aware of, should have been aware of, or had a reason or a duty to be aware of the unlicensed sale of alcoholic beverages at the subject premises. It is well established that a landlord has a duty to maintain his property in a safe condition, which requires him to take minimal precautions to protect against the reasonably foreseeable criminal acts of third persons. This duty arises where the party possessing the property knows or has reason to know of a likelihood of conduct by third persons which is likely to endanger the public. *See, Maria S. v. Willow Enters.*, 651 N.Y.S.2d 486 (1st Dept. 1996). Given that a shooting occurred on one (1) of the two (2) incident dates—which resulted in a homicide—and that, on both dates, officers observed multiple bar areas stocked with alcoholic beverages, a cash register, and cups of alcoholic beverages throughout the subject premises, and that on one of the dates an officer observed 400-500 patrons inside the subject premises, along with online posts advertising the sale of alcoholic beverages at the subject premises, plaintiff respectfully submits that defendant WEST 42nd STREET DEVELOPERS, LLC, was on notice that the subject premises was being used for the unlicensed sale and on-premises consumption of alcohol, and therefore, has a duty to protect the public from this unlawful activity.

**THE COURT IS AUTHORIZED TO ISSUE AN *EX PARTE* TEMPORARY
RESTRAINING ORDER ENJOINING UNLICENSED ACTIVITY UNDER THE ABC
LAW**

59. Plaintiff also seeks an *ex parte* temporary restraining order enjoining the use of the subject premises for the unlicensed sale and on-premises consumption of alcohol, pending the determination of this action and during the pendency of the instant motion for a preliminary injunction. As established by the annexed affirmations of Sgt. Castillo and Lt. Corde, the subject premises has been used for the unlicensed alcohol-related activity, a serious public nuisance, as defined by Section 7-703(h) of the Administrative Code, thereby threatening the health, safety, and welfare of the community.

60. An *ex parte* temporary restraining order is authorized pursuant to Section 7-710(a) of the Administrative Code where a premises is not licensed as required by the ABC Law. Section 7-710(a) also provides that such temporary relief may remain in effect pending further order of the court. This section provides, in relevant part, as follows:

If, on a motion for a preliminary injunction pursuant to section 7-707 alleging a public nuisance as defined in...subdivision (h) of section 7-703 in a building, erection or place *operating without a license* or with a license permitting the sale of liquor under the alcoholic beverage control law, the corporation counsel shall show by clear and convincing evidence that such public nuisance is being conducted, maintained or permitted and that the public health, safety or welfare immediately requires a temporary restraining order, such temporary restraining order may be granted without notice restraining the defendants and all persons from removing or in any manner interfering with the furniture, fixtures and movable property used in conducting, maintaining or permitting such nuisance and from further conducting, maintaining or permitting such nuisance, pending order of the court granting or refusing the preliminary injunction and until further order of the court. (Emphasis added)

61. In the case herein, the annexed affirmations of Sgt. Castillo and Lt. Corde establish by clear and convincing evidence that defendants have used the subject premises for the unlicensed sale and on-premises consumption of alcohol, a public nuisance as defined by Section 7-703(h) of the Administrative Code, and thus, plaintiff is entitled to a temporary restraining order pursuant to Section 7-710(a) of the Administrative Code.

62. The relief sought upon this application is expressly authorized by Sections 7-707 and 7-710 of the Administrative Code.

63. No prior application for this relief has been made to this or any other court or judge. No other provisional remedy has been secured or sought in the same action against the same defendants.

WHEREFORE, it is respectfully requested that plaintiff's application be granted in all respects.

DATED: New York, New York
January 28, 2025



Evan Gluck, Esq.

LIST OF EXHIBITS

- Exhibit 1: Copy of Deed
- Exhibit 2: Copy of Information Maintained by the New York State Department of State
- Exhibit 3: Affirmation of Lieutenant John Corde
- Exhibit 4: Affirmation of Sergeant Jason Castillo
- Exhibit 5: Screen-shot from Instagram